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you, and if you believe that the Petition which these Lords presented to the King was this Petition, truly I think that is a Publication sufficient ; if you do not believe it was this Petition, then my Lords the Bishops are not guilty of what is laid to their Charge in this Information, and consequently there needs no Enquiry whether they are guilty of a Libel : But if you do believe that this was the Petition they presented to the King, then we must come to enquire whether this be a Libel.

Now, Gentlemen, any thing that shall disturb the Government, or make Mischief and a Stir among the People, is certainly within the Case of *Libellus Famofis* ; and I must in short give you my Opinion, I do take it to be a Libel. Now, this being a Point of Law, if my Brothers have any Thing to say to it, I suppose they will deliver their Opinions.

Mr. Just. *Holloway*. Look you, Gentlemen, 'tis not usual for any Person to say any Thing after the Chief-Justice has summ'd up the Evidence, 'tis not according to the Course of the Court ; but this is a Case of an extraordinary Nature, and there being a Point of Law in it, 'tis fit every body should deliver their own Opinion : The Question is, Whether this Petition of my Lords the Bishops be a Libel, or no. Gentlemen, the End and Intention of every Action is to be consider'd ; and likewise in this Case we are to consider the Nature of the Offence that these noble Persons are charg'd with ; it is for delivering a Petition, which, according as they have made their Defence,